

PANEL 1/12 - SOURCE, ORIGIN AND AMENDMENT RAIL

28 Sep 1993 deemed commencement -> 8 Jan 1994 assent, Act 10 of 1994

-> 2006: court-direction inquiry + wider visits + transfer + recast section 18

-> 2019: broader eligibility + 3 experts/1 woman + 7 deemed members + 3-year terms

PHRA creates NHRC, permits SHRCs and enables Human Rights Courts.

RULE: statutory watchdogs; not constitutional courts or binding tribunals.

PANEL 2/12 - SECTION 2 HUMAN-RIGHTS FIELD

life + liberty + equality + dignity of individual

-> guaranteed by Constitution OR embodied in defined International Covenants

-> enforceable by courts in India.

ICCPR + ICESCR + notified UNGA covenant/convention.

LIMIT: not every moral claim, treaty aspiration or private dispute enters PHRA jurisdiction.

PANEL 3/12 - NHRC COMPOSITION

Chair: has been CJI or Supreme Court Judge

-> 1 is/has been SC Judge

-> 1 is/has been HC Chief Justice

-> 3 human-rights experts, at least 1 woman

-> 7 deemed: NCM/NCSC/NCST/NCW/NCBC/NCPCR/CCPD

BOUNDARY: deemed membership covers section 12(b)-(j), not 12(a).

PANEL 4/12 - NHRC APPOINTMENT, TENURE AND REMOVAL

6-member committee: PM + LS Speaker + Home Minister + LoP LS + LoP RS + RS Deputy Chair

-> President appoints by warrant.

Term: 3 years; reappointment; age 70; post-government-employment bar.

Removal: President; misbehaviour/incapacity -> Supreme Court inquiry.

Direct grounds: insolvency, outside paid work, infirmity, declared unsound mind, conviction/imprisonment involving moral turpitude.

PANEL 5/12 - SECTION 12 FUNCTIONS

inquire suo motu/petition/court direction

-> court intervention with approval

-> institution visits

-> safeguard + inhibiting-factor review

-> treaty study -> research -> literacy -> NGO encouragement -> promotion.

PUBLIC-SERVANT NEXUS: violation/abetment or negligence in prevention.

PANEL 6/12 - EVIDENCE, INVESTIGATION AND FAIRNESS

section 13: summons/oath/documents/affidavits/public records/commissions

-> limited entry/seizure + deemed-court consequences.

sections 11/14: government staff/agency with concurrence

-> Commission direction -> agency report -> Commission verifies.

sections 15/16: statement protection + hearing/defence where prejudice likely.

LIMIT: strong fact-finding != general civil/criminal jurisdiction.

PANEL 7/12 - SECTIONS 17-18 INQUIRY TO OUTPUT

report call -> no timely report: own inquiry

-> adequate action/no need: close + inform

-> inquiry finding:

recommend compensation/damages | prosecution/action | interim relief

| approach SC/HC | send report -> 1-month comments -> publish.

LEGAL EFFECT: recommend/approach/publish, not decree/convict/execute.

PANEL 8/12 - SECTION 19 ARMED FORCES

armed forces = naval/military/air/other armed forces of Union.

own motion/petition -> seek Central report

-> stop OR recommend -> Central action response in 3 months -> publish.

State police != automatically armed forces.

LIMIT: special report route replaces ordinary direct NHRC investigation.

PANEL 9/12 - SHRC SECTIONS 21-29

State may constitute.

Chair: has been HC Chief Justice/Judge

+ judicial member: HC Judge or District Judge with ≥ 7 years as DJ

+ 1 human-rights expert.

Governor appoints; resignation to Governor; PRESIDENT removes.

3 years; age 70; reappointment.

Scope: List II + List III; already-inquired matter barred.

Section 29 applies NHRC procedure but omits section 12(f) treaty study.

PANEL 10/12 - COURTS, PROSECUTORS, SITS AND REPORTS

section 20/28 reports -> legislatures + action memorandum + non-acceptance reasons.

section 30: State may specify Sessions Court with HC Chief Justice concurrence.

section 31: Public Prosecutor or advocate with ≥ 7 years.

section 37: Government may constitute SIT for investigation/prosecution.

CHAIN: Commission finds/recommends -> investigator -> prosecutor -> court adjudicates.

PANEL 11/12 - JURISDICTION AND CASE LAW

section 36(1): NHRC no inquiry if pending before SHRC/other lawful commission.

section 36(2): NHRC/SHRC no inquiry after 1 year from alleged act.

N.C. Dhoundial (2003): jurisdictional bar; continuing effects != continuing act.

Paramjit Kaur (1999): Article 32 court-assigned expert role is sui generis;

ordinary section 36(2) bar does not control that role.

EEVFAM (2016): credible inquiry for alleged extra-judicial executions/excessive force;

no automatic immunity and no conversion of NHRC material into criminal judgment.

PANEL 12/12 - EVALUATION, PYQS AND VERDICT

STRENGTHS: access + suo motu + evidence + visits + reports + public pressure.

LIMITS: recommendation + one year + armed-forces report route + investigator dependence
+ vacancies + uneven SHRC/court operation + delayed follow-up.

REFORM: open plural appointments + independent investigation + protected resources

+ reasoned response/court escalation + calibrated time-bar change

+ safeguarded armed-forces fact-finding + referral/prosecution tracking.

PYQS: 2018 umbrella debate; 2021 limitations/remedies.

VERDICT: strengthen evidence, independence and follow-through without inventing
binding adjudication, punishment, compensation decrees or unlimited jurisdiction.